

		all of the relevant circumstances, the trial court ‘transgresse[d] the confines of the applicable principles of law’ [Citation] and thereby abused its discretion.” (<i>Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.</i> (2008) 165 Cal.App.4th 1568, 1588 (reversing order granting untimely motion to compel).) In its Reply, Defendant quotes <i>Pelton-Shepherd Industries</i>, “But the fact that a party does not have a <i>right</i> to have a discovery motion heard after the discovery motion cutoff date does not mean the court has no <i>power</i> to hear it, or that the court errs in hearing it.” (<i>Pelton-Shepherd Industries, supra</i>, 165 Cal.App.4th at 1586.) However, the Court of Appeal in that matter held that a party must file a motion to reopen discovery or have a motion heard after the discovery cutoff. (Ibid.) Indeed, the Court of Appeal held that the trial court abused its discretion by hearing the motion to compel without first reopening discovery. (Id. at 1587.) Here, the Court already denied Defendant’s first request to have these discovery motions heard after the discovery cutoff, and Defendant has not filed a motion to reopen discovery. Accordingly, the motions are denied. Pursuant to Code Civ. Proc. §§ 2030.300 and 2031.310, the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to an interrogatory or inspection demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The motions were made with substantial justification, as Plaintiffs have asserted boilerplate objections that largely lack merit. Both Defendant and Plaintiffs’ request for monetary sanctions are denied. Defendant shall give notice of this ruling.
6	Lampley v. Hermosa 2019 LP	Jamala Y. Garcia’s motion to substitute Ms. Garcia as Successor in Interest in place of Plaintiff El Veasta Lampley is CONTINUED TO January 21, 2027, at 1:30 p.m. in this department for supplemental briefing, as discussed below. <u>Legal Authority</u> “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) “Decedent’s successor-in-interest” means “the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc., § 377.11.)

"The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right ... to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) Code Civ. Proc. § 377.32, subds. (a)(1) through (7), sets forth the requirements for the affidavit.

Ms. Garcia provided a declaration in compliance with Code Civ. Proc. § 377.32, which provides as follows:

She is the surviving daughter of Plaintiff, who died intestate on October 28, 2024 in the City of Huntington Beach. (Decl. of Garcia, ¶¶ 2, 4). She attached a copy of the death certificate as Exhibit A. (Decl. of Garcia, ¶ 2, Ex. A). Decedent was not married at the time of her death. (Decl. of Garcia, ¶ 3). She is the decedent's sole surviving daughter. (Decl. of Garcia, ¶ 4). Decedent was also survived by one son, Hodari Garcia. (Decl. of Garcia, ¶ 5).

No proceeding is now pending in California for administration of the decedent's estate. The decedent's estate has not been administered in California. (Decl. of Garcia, ¶ 6). She is the decedent's successor in interest as defined in California Code of Civil Procedure § 377.11 and succeed to the decedent's interest in this action. (Decl. of Garcia, ¶ 7). She declares that no other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding. (Decl. of Garcia, ¶ 8). Finally, she declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

However, the court notes paragraph 8 of Ms. Garcia's declaration regarding Hodari Garcia, and the lack of any further explanation. The court **ORDERS** Ms. Garcia to provide additional information regarding the status of Mr. Garcia and his interest in this litigation. Ms. Garcia shall provide supplemental briefing and/or declarations no later than 7 days prior to the continued hearing date.

Finally, Defendant Earl Wallace submitted an Opposition to the substitution on the basis that Plaintiff's claims against Wallace have already been dismissed, and substitution cannot revive dismissed claims. (See 4/10/25 Order sustaining demurrer [ROA 331]). The Court agrees that substitution does not revive dismissed claims. (See *Exarhos v. Exarhos* (2008) 159 Cal.App.4th 898, 905 ["[A] successor in interest under section 377.11 'steps into [the decedent's] position,' as to a particular action."]).

Ms. Garcia shall give notice.

Case Management Conference